

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge William J. Martínez

Courtroom Deputy: Deborah Hansen
Court Reporter: Mary George

Date: August 7, 2017
Time: two hours and 50 minutes

Civil Action No. 15-cv-01974-WJM-KLM

Counsel:

DAVID MUELLER,

M. Gabriel McFarland
Gillian Cooley Morrison

Plaintiff and Counterclaim
Defendant,

v.

TAYLOR SWIFT,

J. Douglas Baldrige
Danielle R. Foley
Katherine M. Wright
Jesse P. Schaudies, Jr.

Defendant and CounterClaimant,

and

FRANK BELL, and
ANDREA SWIFT a/k/a Andrea Finlay,

Defendants.

COURTROOM MINUTES

JURY TRIAL - DAY ONE

01:27 p.m. Court in Session

Appearances

Court's comments

The court addresses pretrial matters.

The jury will be provided lunch every day of the trial.

Based on the court's review of the Questionnaire responses, the court intends to excuse jurors: #689, #501, #400, #239, #357, #034, #204. The parties do not object.

The following jurors are excused:

1. #689
2. #501
3. #400
4. #239
5. #357
6. #034
7. #204

Court's further comments

Counsel have been provided with copies of the completed Questionnaires and have been given 60 minutes to review them.

Plaintiff has no challenges for cause as to the Questionnaires.

Defendants' challenge for cause as to the Questionnaires: #162

Plaintiff objects to the challenge for cause.

ORDERED: The Defendants' challenge for cause as to #162 is sustained.

8. #162 stricken for cause

Defendants' challenge for cause as to the Questionnaires: #135.

Plaintiff does not object.

9. #135 stricken for cause

Defendants' challenge for cause as to the Questionnaires: #255.

Plaintiff does not object.

10. #255 stricken for cause

Defendants' challenge for cause as to the Questionnaires: #389.

Plaintiff does not object.

11. #389 stricken for cause

Court's comments regarding the Order ruling on deposition designations [ECF No. 215].

01:49 Court In Recess

02:08 Court in Session

Jury panel present

Court's opening remarks to the jury

02:15 Voir dire commences

02:25 Jury panel administered the voir dire oath.

Court's voir dire

02:47 Bench conference with #174

Court's voir dire continued.

03:20 Jury excused from the courtroom.

Plaintiff's challenges for cause: #457, #467, #174

Defendants object to Plaintiff's challenges for cause as to #457, #467, #174.

ORDERED: Plaintiff's challenges for cause as to #467, #174 are overruled.

ORDERED: Plaintiff's challenge for cause #457 is sustained.

12. #457 stricken for cause

03:34 Court in Recess

03:57 Court in Session

Jury panel present

Court's comments

Defendants do not have any additional challenges for cause.

03:58 Voir dire (by Mr. McFarland)

04:30 Voir dire (by Mr. Baldridge)

Court's instructions to the jury panel regarding their conduct during the recess, and

reads aloud the applicable part of the Amended Trial Decorum Order.

04:38 Jury excused.

The court address challenges for cause based on the parties' voir dire.

Challenges for cause by Plaintiff based on voir dire: none

Challenges for cause by Defendants: #632

Plaintiff objects to the challenge for cause.

ORDERED: The challenge for cause as to #632 is sustained.

13. #632 stricken for cause.

ORDERED: Plaintiff's oral motion for Rule 615, exclusion of non-expert and expert witnesses from the courtroom until they testify, is GRANTED.

ORDERED: The Plaintiff's oral motion under Local Rule 47.2 for written authorization to allow counsel to communicate with members of the jury at the conclusion of the trial is GRANTED. A text order entry will enter setting forth restrictions regarding Local Rule 47.2.

04:59 p.m. Court in Recess
Trial continued